

**CHAPTER cxviii.**

An Act to empower the mayor aldermen and burgesses of the borough of Hartlepool to run omnibuses to make further provision for the health local government and improvement of the borough to consolidate the rates of the borough and for other purposes.

A.D. 1925.

[7th August 1925.]

WHEREAS the borough of Hartlepool (in this Act called "the borough.") is a municipal borough subject to the Acts relating to municipal corporations and the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") acting by the council are the urban sanitary authority for the borough:

And whereas it would be of local and public advantage if the Corporation were empowered to run omnibuses within the borough as in this Act provided:

And whereas it is expedient to make further and better provision with regard to the health local government and improvement of the borough and that the powers of the Corporation in regard thereto be enlarged as in this Act provided:

And whereas the borough comprises the parishes of Hartlepool Throston and Middleton and it is expedient to constitute the council of the borough overseers of those parishes and to make provision for the consolidation of the rates levied in the borough:

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And whereas it is desirable that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the provision of omnibuses	8,000
For the purchase of lands and the erection of buildings for the purposes of such omnibuses	2,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Hartlepool Corporation Act 1925.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Omnibuses.

Part III.—Streets buildings and drains.

Part IV.—Infectious disease and sanitary provisions.

Part V.—Town moor public buildings parks baths &c.

Part VI.—Lands.

Part VII.—Rating provisions. A.D. 1925.
Part VIII.—Financial.
Part IX.—Miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

Incorporation of Acts.

The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) and except the provisions with respect to the taking of lands otherwise than by agreement.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in this Act unless the subject or context otherwise requires—

Interpretation.

“ The borough ” means the borough of Hartlepool;

“ The Corporation ” means the mayor aldermen and burgesses of the borough;

“ The council ” means the council of the borough;

“ The borough fund ” “ the borough rate ” “ the district fund ” and “ the general district rate ” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“ Road authority ” means with reference to any road or part of a road over which any omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road;

“ The Order of 1923 ” means the Hartlepool Order 1923 confirmed by the Ministry of Health Provisional Orders Confirmation (No. 3) Act 1923;

“ The mayor ” “ the town clerk ” “ the treasurer ” “ the medical officer ” “ the surveyor ” and “ the sanitary inspector ” mean respectively the mayor the town clerk the treasurer the medical officer of health the surveyor and any

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sanitary inspector of the borough and include respectively any persons duly authorised to discharge temporarily the duties of those offices;

“ Trading undertaking ” means the ferry undertaking the omnibus undertaking the entertainments undertaking and the baths undertaking of the Corporation;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“ Principal moneys ” means any moneys borrowed or to be borrowed by the Corporation under any statutory borrowing power (including borrowing powers under this Act) and not raised by the issue of stock;

“ Daily penalty ” means a penalty for each day on which any offence is continued by a person after conviction;

“ Infectious disease ” means any infectious disease A.D. 1925.
to which the Infectious Disease (Notification)
Act 1889 is for the time being applicable within
the borough. —

PART II.

OMNIBUSES.

5.—(1) Subject to the provisions of this Act the Corporation may provide and maintain (but shall not manufacture) and may run omnibuses within the borough except along Cleveland Road between its junction with Hart Road and the south-western boundary of the borough. Power to run omnibuses.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such omnibuses but the Corporation shall not create or permit any nuisance on any lands upon which they erect any such houses buildings or sheds.

(3) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(4) The Corporation shall perform in respect of the omnibuses provided under this section such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

(5) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Corporation as if they were carriages used on tramways.

(6) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon such omnibuses or in or against any premises held by the Corporation in connection therewith.

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(7) The Corporation shall keep the accounts in respect of their omnibus undertaking separate from their other accounts distinguishing therein capital from revenue.

(8) The powers of this section shall not be exercised by the Corporation until they shall have obtained powers to run trolley vehicles upon the routes described in Article 3 (Power to use trolley vehicles) of the West Hartlepool Corporation (Trolley Vehicles) Order 1925 scheduled to the West Hartlepool Corporation (Trolley Vehicles) Provisional Order Confirmation Bill 1925.

Adaptation
of roads.

6.—(1) (a) Before the Corporation commence to run omnibuses over any road or part of a road it shall be determined by agreement between the Corporation and the road authority (where it is not the Corporation) or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Act of an omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any bridge and if so what sum of money per mile of road so to be adapted altered or reconstructed or what sum of money in respect of any such bridge shall be payable by the Corporation to the road authority by way of contribution towards the cost incurred in such adaptation alteration reconstruction or strengthening.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subsection have been so agreed or determined the Corporation shall give notice in writing to the road authority as to whether they intend to run omnibuses over the road or part of a road or bridge in question.

(c) If the Corporation give notice in writing to the road authority that they intend to run omnibuses over the road or part of a road or bridge in question and if it shall have been agreed or determined that the Corporation are to make any payment to the road authority under the provisions of paragraph (a) of this subsection the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road or of strengthen-

ing such bridge pay to the road authority such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work. Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid. A.D. 1925.

(d) Notwithstanding anything in this subsection the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any bridge which is not executed within three years from the date on which the Corporation shall commence to run omnibuses over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subsection) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed or of any such bridge so strengthened.

(2) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act.

(3) The road authority shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any road bridge or approach by the omnibuses of the Corporation.

(4) Nothing in this section shall impose or enlarge any obligation upon any railway or canal company to strengthen adapt alter or reconstruct any bridge maintainable by them.

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Fares and
charges.

7.—(1) Subject to the provisions of this section the Corporation may demand and take for passengers and parcels carried on the omnibuses fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport Provided that if and so long as the Corporation or any local authority company body or person with whom the Corporation may make an agreement under the section of this Act of which the marginal note is “ Working and other agreements ” shall run omnibuses along any of the roads (other than Cleveland Road between its junction with Hart Road and the boundary of the borough) mentioned in Article 3 (Power to use trolley vehicles) of the West Hartlepool Corporation (Trolley Vehicles) Order 1925 scheduled to the Bill now pending in Parliament and intituled “ West Hartlepool Corporation (Trolley Vehicles) Provisional Order Confirmation Bill ” or on any route in competition with any trolley vehicle service provided on any such road (including Cleveland Road) the fares and charges to be demanded and taken by the Corporation or such local authority company body or person on such omnibuses shall be not less than fifty per centum more than the fares and charges for the time being demanded and taken on any trolley vehicles run along the said roads and if any question shall at any time arise between the Corporation and the West Hartlepool Corporation as to whether such competition exists or would exist the same shall be determined by an arbitrator to be appointed by the Minister of Transport on the application of either party after notice in writing to the other and the provisions of the Arbitration Act 1889 shall subject as aforesaid apply to the determination of any such question.

(2) Every passenger may take with him personal luggage not exceeding twenty-eight pounds in weight without extra charge but all such luggage shall be carried by hand and shall not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

(3) The Corporation may if they think fit carry on the omnibuses small parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the

fare payable by the passenger but they shall not carry any other goods or animals. A.D. 1925.

(4) The fares and charges for the time being authorised under the provisions of this Act shall be paid to such persons and in such manner as the Corporation may by notice annexed to the list of fares and charges appoint.

8. The Corporation may erect and maintain within the borough shelters or waiting rooms and gangways for the accommodation of passengers on any omnibus routes established under the authority of this Act and may use for that purpose portions of the public streets or roads. Shelters or waiting rooms.

9. The Corporation may provide cloakrooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any depôt or building used by them in connection with their omnibus undertaking and at suitable places on any of their omnibus routes and the Corporation may make charges for the use of such cloakrooms rooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein. Cloak-rooms &c.

10. For the better regulation of persons desiring to travel in omnibuses the Corporation may erect and maintain barriers and posts at any stopping place or terminus within the borough and for that purpose may use part of the highway and the Corporation may make byelaws requiring persons waiting to enter omnibuses at any such stopping-place or terminus upon any omnibus route to wait in lines or queues and to enter the omnibus in which they respectively desire to travel in the order in which they stood in such line or queue. Power to require intending passengers to wait in lines or queues.

11. The Corporation may appoint the places from which the omnibuses of the Corporation shall start or at which they may stop for the purposes of taking up or setting down passengers and may make regulations for fixing the time during which such omnibuses shall be allowed to remain at any such place. Stopping and starting places.

12. Notwithstanding anything contained in this Act no shelter waiting room gangway cloakroom room or shed barrier or post shall be erected maintained or provided nor shall any starting or stopping place be appointed nor shall the Corporation require persons For protection of London and North Eastern Railway Company.

A.D. 1925. — waiting at any such starting or stopping place or any terminus to wait in any line or queue so as to cause interference with or render less convenient the access to or exit from any station dépôt or property belonging to the London and North Eastern Railway Company nor except with the consent in writing of that company shall any shelter waiting room gangway cloakroom room shed barrier or post be erected maintained or provided on any bridge carrying any street or road over the railways of such company.

Attach-
ment of
signs
indicating
stopping
places to
lamp-posts
&c.

13.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to any of their omnibus routes signs or directions indicating the position of stopping places for omnibuses :

Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to the lamp-post pole standard or similar erection by the attachment and the Corporation shall indemnify the owner against any claim for damage occasioned to any person or property by or by reason of the attachment.

(2) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing or to any lamp-post pole standard or other similar erection belonging to the London and North Eastern Railway Company except with their consent in writing.

Lost
property.

14. Any property found in any omnibus of the Corporation shall forthwith be taken to a place to be appointed for the purpose by the Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the

proceeds thereof carried to the revenue account of the omnibus undertaking of the Corporation. A.D. 1925.

15.—(1) The Corporation and any local authority empowered to run omnibuses in any borough or urban or rural district adjacent to the borough or adjacent to any borough or urban or rural district in which any route over which the Corporation are for the time being empowered to run omnibuses is situate may enter into and carry into effect agreements for the working user management and maintenance of all or any of the omnibus services which the contracting parties are empowered to provide subject to the provisions of the respective Acts under which such omnibus services are authorised. Working
and other
agreements.

(2) The Corporation and any company body or person may enter into and carry into effect agreements for the working user management and maintenance subject to the provisions of this Act of any omnibus services within the borough or on any route over which the Corporation are for the time being empowered to run omnibuses.

(3) The Corporation and any such local authority company body or person as aforesaid may also enter into and carry into effect agreements for all or any of the following purposes (that is to say):—

(a) The working user management and maintenance of any omnibuses lands depôts buildings sheds and property provided in connection with any such omnibus services as aforesaid by either of the contracting parties and the right to provide and use the same and to demand and take the fares and charges authorised in respect of such omnibuses;

(b) The supply by any of the contracting parties under and during the continuance of any such agreement under this section of omnibuses and conveniences in connection therewith necessary for the purposes of such agreement and the employment of officers and servants;

(c) The interchange accommodation conveyance transmission and delivery of traffic arising on or coming from or destined for any omnibus service of the contracting parties;

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(d) The payment collection and apportionment of the fares and charges and other receipts arising from any such omnibus service as aforesaid.

(4) The Corporation shall not enter into or carry into effect any agreement under the provisions of this section in relation to any omnibus service lands depôts buildings sheds or property beyond the borough otherwise than with the consent of the local authority of the district within which such omnibus service lands depôts buildings sheds or property are situate. Provided that on complaint being made to the Minister of Transport that such consent is unreasonably withheld the Minister may if he thinks fit by order dispense with such consent.

Inquiries
by Minister
of Trans-
port.

16. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Corporation the provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

As to bye-
laws &c.
under this
Part of this
Act.

17. Any byelaws and regulations made by the Corporation under the provisions contained in this Part of this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

PART III.

STREETS BUILDINGS AND DRAINS.

Courts to
be flagged
and drained.

18.—(1) The owner or owners of premises the occupiers of which use in common any court or yard or passage (not being a highway repairable by the inhabitants at large) or any part of such court yard or passage shall if so required by the Corporation flag asphalt concrete or pave such court yard or passage or any part thereof and make a drain through or along the same and provide gullies and grids in suitable positions and at proper levels and keep such flagging asphaltting concreting or paving and drain gullies and grids in good repair.

(2) If such owner or owners shall for two months after notice in writing from the Corporation fail in any respect to comply with any requirements of the Corporation under the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Corporation may themselves if they think fit do the work and recover the expenses incurred by them in that behalf from such owner or owners.

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19.—(1) Section 46 (Houses to be purified on certificate of officer of health or of two medical practitioners) of the Public Health Act 1875 shall extend to—

Cleansing
of courts
passages
outbuildings
&c. used in
common.

(a) the walls of any court or yard or passage (not being a highway repairable by the inhabitants at large) used in common by the occupiers of separate premises or any part of such walls (whether or not such walls or part thereof form a portion of any building); or

(b) any sanitary convenience used in common by the occupiers of separate premises or the walls floors seats or fittings thereof or any part of the same; or

(c) any outbuilding used in common as a wash-house or other domestic convenience by the occupiers of separate premises or the walls floors or fittings thereof or any part of the same;

and the provisions of that section (including the penal provision) shall accordingly apply as if each of the owners or occupiers of such separate premises as are hereinbefore mentioned were the owner or occupier of a house or part thereof and with such other modifications as may be necessary.

(2) Where under the powers conferred by this section the Corporation have executed works on the default of two or more owners or occupiers of premises any expenses incurred by the Corporation in the execution of the works shall be paid by such owners or occupiers in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

20. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon any private street communicating

For prevent-
ing soil &c.
from being

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washed into
streets.

with any public street shall so fence off channel or embank their lands as to prevent soil sand clay cinders or other like substances from such lands from falling upon or being washed or carried into any public street or sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully. Provided that in the event of an offence being committed under this section the Corporation shall give to the owners or occupiers fourteen days' notice in writing requiring them to comply with the provisions of this section and any person offending against this section after the expiration of such notice as aforesaid shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

For the purposes of this section "public street" means so much of a street repairable by the inhabitants at large as is sewered and "private street" means a street not so repairable:

Provided that such owner or occupier shall not be responsible for any soil sand clay cinders or other substances from land other than his own although such soil sand clay cinders or other substances may have passed over the land of such owner or occupier. Provided further that this section shall not apply to any land of a bonâ fide agricultural character or to any woodland.

As to
urgent
repairs to
stairs
passages &c.

21. When any passage stairs or approach which afford access between one public street and another or over which the public have rights of way but which is or are not a highway repairable by the inhabitants at large is or are for want of repairs in such a state as to be a danger to the public passing along such passage stairs or approach the Corporation may at the expense of the borough fund carry out such repairs (including the provision of handrails balustrades and parapet fences or walls) as may be reasonably necessary to obviate such danger without rendering themselves liable to the future maintenance of the passage stairs or approach so repaired by them.

Removal of
dilapidated
and
neglected
buildings.

22.—(1) Where an unoccupied building is ruinous or so far dilapidated as thereby to have become and to be unfit for use or occupation or is from neglect or otherwise in a structural condition prejudicial to the property in or

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the inhabitants of the neighbourhood a court of summary jurisdiction on complaint by the Corporation may order the owner at his option either to take down or to repair such building (in this section referred to as a "neglected structure") or any part thereof or otherwise to put the same or any part thereof into a state of repair and good condition to the satisfaction of the Corporation within a reasonable time to be fixed by the order and may also make an order for the costs incurred up to the time of the hearing.

(2) If the order is not obeyed the Corporation may with all convenient speed enter upon the neglected structure and execute the order.

(3) Where the order directs the taking down of a neglected structure or any part thereof the Corporation in executing the order may remove the materials to a convenient place and (unless the expenses of the Corporation under this section in relation to such structure are paid to them within fourteen days after such removal) sell the same if and as they in their discretion think fit.

(4) All expenses incurred by the Corporation under this section in relation to a neglected structure may be deducted by the Corporation out of the proceeds of the sale and the surplus (if any) shall be paid by the Corporation on demand to the owner of the structure and if such neglected structure or some part thereof is not taken down and such materials are not sold by the Corporation or if the proceeds of the sale are insufficient to defray the said expenses the Corporation may recover such expenses or such insufficiency from the owner of the structure together with all costs in respect thereof in a summary manner but without prejudice to his right to recover the same from any lessee or other person liable to the expenses of repairs.

23.—(1) In the case of any building which may appear to the Corporation on the report of any duly qualified officer to be dangerous to the inmates or to persons working therein the Corporation may order a complete external and internal inspection and examination of any such building to be made by a competent person and for that purpose such person may on giving not less than twenty-four hours' notice to the occupier of the building and on producing written authority from

As to
dangerous
buildings.

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the town clerk at any hour of the day between ten o'clock in the forenoon and six o'clock in the afternoon with such other persons as he may deem necessary enter upon such building and examine and inspect the same.

(2) If upon such examination and inspection it shall appear necessary that any works should be executed or alterations made for the purpose of putting such premises into a safe and proper condition for the purposes for which the same are used the Corporation in respect of such building and the works to be carried out therein shall have and may exercise all or any of the powers vested in the Corporation with respect to dangerous structures.

As to
repair of
hoardings.

24. The Corporation may by notice in writing require the owner of any hoarding to maintain the same and any advertising matter thereon in good order and condition and if any owner shall neglect or refuse to comply with any such notice the Corporation may carry out such alterations or repairs as may be reasonably necessary and recover summarily from the owner any expenses incurred by them in so doing.

As to pro-
jections
over streets.

25.—(1) Every notice board sign bracket or other projection which shall overhang any street shall be securely fixed and maintained by the owner thereof.

(2) If the Corporation have reason to believe that any such notice board sign bracket or other projection is not securely fixed they may enter upon the premises to which it is attached for the purpose of inspecting the same and the means by which it is attached.

(3) In the event of any such notice board sign bracket or other projection being insecurely fixed the Corporation may require the owner to fix the same securely within a period of seven days from the receipt of notice of such their requirement and in default of his so doing the Corporation may themselves carry out the work necessary in that behalf and may recover the cost incurred by them in so doing from such owner.

As to
defective
drains &c.

26.—(1) In any case where it appears to the medical officer or sanitary inspector that any drain watercloset or soil pipe is stopped up or otherwise defective the medical officer or sanitary inspector shall give notice to the owner or occupier of the premises to

remedy such defect and if such notice is not complied with within twenty-four hours from the service thereof the Corporation may carry out the work necessary to remedy such defect and may subject as hereinafter provided recover the expenses incurred in that behalf from such owner or occupier in a summary manner as a civil debt.

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(2) Upon any proceedings under this section the court may inquire whether any requirements contained in any notice given under this section or work done by the Corporation was reasonable and whether the expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

27. The Corporation may make byelaws for securing the proper ventilation and lighting of and for the prevention of insanitary conditions (a) in or about or arising out of any existing stable (whether the same is used as such at the passing of this Act or not) or (b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

Byelaws
as to
stables &c.

28. Nothing in this Part of this Act except the sections of which the marginal notes are "As to repair of hoardings" and "For preventing soil &c. from being washed into streets" shall apply to any building (not used as a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to a railway company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by any such company and used for the purposes (other than for a dwelling-house) of the undertaking of such company with the authority of Parliament.

Saving for
railway
companies.

PART IV.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

29.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer

Power to
close
schools &c.

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—
in certain
events.

with the view of preventing the spread of infectious disease in the borough require the closing of any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether or not on a Sunday or any department of any such school or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirements shall be at once complied with.

(2) Any person responsible for the conduct or management of any such school or department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding twenty shillings.

Special
provisions
to prevent
spread of
infectious
disease.

30. Any parent or other person liable to maintain a child in attendance at a school who is aware of or has reason to suspect the occurrence of any infectious disease in any person residing with such parent or other person and who fails forthwith to notify such occurrence to the head teacher of the school shall be liable to a penalty not exceeding twenty shillings :

Provided that in any proceeding under this section a certificate purporting to be under the hand of the head teacher of an elementary school a continuation school or any other school under the control of the Corporation stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

Extended
meaning of
"infectious
disease" for
certain
purposes.

31. For the purposes of the foregoing provisions of this Part of this Act the expression "infectious disease" includes measles German measles whooping cough chicken pox and influenza.

Medical
inspection
of inmates
of common
lodging-
houses &c.
when
infectious.

32. Whenever the medical officer shall report in writing to the Corporation or to a committee of the council that there is a prevalence of infectious disease in the borough or in any adjoining or neighbouring borough or district and that there are reasonable grounds to apprehend the spread or communication of such disease to persons within the borough by persons resorting to

common lodging-houses the Corporation or such committee as aforesaid may by resolution declare that by reason of the prevalence of the infectious disease named in the resolution it is expedient that the medical officer should be entrusted with the special powers hereinafter mentioned and subject as hereinafter provided the following provisions shall thereupon be in force within the borough for such period as the Corporation or such committee as aforesaid having regard to the circumstances of the case shall in the resolution determine (that is to say) :—

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—
disease
prevails.

- (1) The medical officer may when authorised by warrant granted by any justice on complaint on oath by the medical officer that he has reason to believe that the infectious disease named in the resolution of the Corporation or such committee as aforesaid may exist or has recently existed in any common lodging-house in the borough medically examine any person found in any common lodging-house in the borough with a view to ascertaining whether such person is suffering or has recently suffered from such disease. Any person obstructing the medical officer in making the examination aforesaid shall be liable to a penalty not exceeding forty shillings for each offence :
- (2) A copy of every such resolution shall forthwith be sent by the Corporation or such committee as aforesaid to every keeper of a registered common lodging-house in the borough and to the Minister of Health :
- (3) Unless approved by the Minister of Health any such resolution shall cease to be in force at the expiration of fourteen days after it is passed or any earlier date fixed by the Minister of Health :
- (4) A warrant granted under this section may authorise the medical officer to exercise the powers of examination hereinbefore conferred during such period not exceeding the period during which the provisions aforesaid shall be in force as may be specified in such warrant.

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Power to
close
infectious
common
lodging-
houses.

33.—(1) If the Corporation deem it necessary on account of the existence or recent existence therein of infectious disease to close a common lodging-house they may make an application to a court of summary jurisdiction for an order to close the same and the court if satisfied of the necessity for such closing may make an order for the closing of such house until the same shall have been disinfected to the satisfaction of and certified to be free from infection by the medical officer and any keeper of a common lodging-house who shall receive any lodger or suffer or permit any lodger to remain in such house after an order has been made to close the same and during the continuance of such order shall be liable to a penalty of five pounds for every day during which the offence continues.

(2) The Corporation shall make compensation to the keeper of any such lodging-house for any loss he may sustain by reason of any such closing.

Removal of
person
suffering
from
pulmonary
tuberculosis
to hospital.

34.—(1) If the medical officer certifies in writing (a) that any person is suffering from pulmonary tuberculosis and is in an infectious state and (b) that by reason of the lodging or accommodation with which such person is provided being such that proper precautions to prevent the spread of infection cannot be taken or by reason of such precautions not being taken serious risk of infection is caused to other persons and that thorough inquiry and consideration have shown the necessity in the public interest for the compulsory isolation of the person so suffering the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a registered medical practitioner to be nominated by them if they think fit may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the borough or within a convenient distance of the borough subject to the consent of the superintending body of such hospital or place and subject to the like consent for the retention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section.

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(2) The medical officer shall give the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) (i) Where—

(a) any person suffering as aforesaid is removed to any such hospital or place as aforesaid under an order made under this section; or

(b) any person resident in the borough and suffering as aforesaid voluntarily goes for treatment to any hospital or place for the reception of the sick;

the Corporation may if they think fit and if satisfied that the necessities of the case so require make payments for or towards the maintenance of any relative of or person actually dependent on the person so suffering.

(ii) On the hearing of any application under this section the court shall take into consideration the amount necessary for such maintenance and shall not make an order unless they are satisfied that the Corporation will make a sufficient payment in any case in which it appears that a contribution is necessary for the support and maintenance of such relatives or dependants.

(4) An order under this section may be addressed to any constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

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Disinfection
in case of
tuberculosis.

35.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any tent van shed or similar structure used for human habitation) or any part thereof would tend to prevent or check tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or any part thereof will be cleansed and disinfected by and at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within the time to be fixed in the notice.

(b) If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and disinfected as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer. Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(c) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the medical officer and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(d) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to

the infection of tuberculosis of the lung or other forms of tuberculosis with discharges to cause such articles books things bedding or clothing to be delivered to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds :

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(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and returned to the owner free of charge.

(3) If any person sustains any damage by reason of the exercise by the Corporation of any of the powers of this section in relation to any matter as to which he is not himself in default full compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction.

36.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the lung in an advanced stage and that he is employed in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to public health the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

Power to prohibit persons in advanced stage of tuberculosis from handling &c. food.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so.

(3) If such person fails to comply with any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

37.—(1) If the owner of any dwelling-house or premises occupied therewith represents to the Corporation

As to filthy premises.

A.D. 1925. — that the occupier of such dwelling-house or premises habitually maintains the same in a filthy condition any officer of the Corporation duly authorised in that behalf may enter upon such dwelling-house or premises and inspect the same and if the Corporation is satisfied of the truth of the representation of such owner the occupier shall be liable on the information of the medical officer to a court of summary jurisdiction to be ordered to quit the dwelling-house or premises within such time as may be specified in the order and any such order may be enforced in the manner provided by section 34 of the Summary Jurisdiction Act 1879.

(2) Any expenses incurred by the Corporation under this section and not paid by the occupier shall be recoverable from the owner of the dwelling-house or premises.

Houses
infested
with vermin
to be
cleansed.

38.—(1) If the medical officer or the sanitary inspector has reasonable cause to believe that any house is infested with vermin he may enter into such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer or sanitary inspector it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper or other covering from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require.

(3) If the person to whom such notice is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing

shall (subject as hereinafter provided) be recoverable from the person making the default. A.D. 1925.

(4) Every person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court may inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

(6) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation.

39.—(1) The medical officer or any person provided with and if required exhibiting the authority in writing of the medical officer may examine the person and clothing of any child (other than children in boarding schools including reformatory and industrial schools) and if on examination the medical officer or any such authorised person as aforesaid shall be of opinion that the person or clothing of any such child is infested with vermin or is in a foul or filthy condition the medical officer may give notice in writing to the parent or guardian or other person who is liable to maintain or has the actual custody of such child requiring such parent guardian or other person to cleanse properly the person and clothing of such child within twenty-four hours after the receipt of such notice. Cleansing
of children
and their
clothing.

(2) If the person to whom any such notice as aforesaid is given fails to comply therewith within the prescribed time he shall be liable to a daily penalty not exceeding ten shillings and the medical officer or some person provided with and if required exhibiting the authority in writing of the medical officer may remove the child referred to in such notice and may cause the person and clothing of such child to be properly cleansed

A.D. 1925. in suitable premises and with suitable appliances and if necessary for that purpose may without any warrant other than this Act convey to such premises and there detain such child until such cleansing is effected.

(3) Where after the person or clothing of a child has been cleansed under the provisions of this section the parent or guardian or other person liable to maintain the child allows him to get into such a condition that it is again necessary to proceed under this section the parent guardian or other person shall be liable to a penalty not exceeding ten shillings.

(4) The examination or cleansing of females under this section shall only be effected either by a registered medical practitioner or by a female person being a member of the staff of the medical officer.

(5) Any notice required to be given under this section shall be deemed to be properly served by giving it to the person to whom it is addressed or leaving it for him with some inmate of his residence or by sending the same by post in a registered letter to his usual or last known residence. In any such notice it shall be sufficient to designate the person to be served as the parent guardian or other person liable to maintain or having the actual custody of the child whose person or clothing requires to be cleansed.

(6) For the purposes of this section the expression "child" means a person under the age of fourteen years.

Cleansing
of ver-
minous
persons.

40.—(1) The Corporation may from time to time provide free of charge temporary shelter or house accommodation with any necessary attendants and apparatus for cleansing and freeing from vermin the person and clothing of any person who shall be certified by the medical officer to be infested with vermin or in a foul or filthy condition or suffering from any contagious or infectious disease of the skin and may on the certificate of the medical officer cause any such person who consents to leave his house or whose parent or guardian (where the person is under the age of sixteen) consents to his leaving the house to be removed therefrom to such temporary shelter or house accommodation for the purpose of disinfecting and cleansing his person and clothing and in the

like case and on the like certificate may cause any such person who or (where the person is under the age of sixteen) whose parent or guardian does not consent to his leaving the house to be removed therefrom to and detained in any such temporary shelter or house accommodation where a court of summary jurisdiction on the application of the Corporation and on being satisfied of the necessity of the removal and detention make an order for the removal and detention subject to such conditions (if any) as are imposed by the order. The Corporation shall in every case cause the removal and detention to be effected and the condition of any order satisfied without charge to the person removed or to the parent or guardian of that person. A.D. 1925.

(2) Any person who wilfully disobeys or obstructs the execution of an order under this section shall be liable to a penalty not exceeding five pounds.

(3) The examination or cleansing of females under this section shall only be effected either by a registered medical practitioner or by a female person being a member of the staff of the medical officer.

(4) If any person at the request of the Corporation or under an order of such court shall cease his employment in order to comply with such request or order the Corporation may and in case of an order of the court shall make compensation to him for any loss he may suffer thereby.

(5) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation.

(6) This section shall not apply to any person under the age of fourteen.

41.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who— For regulat-
ing manu-
facture and
sale of ice-
cream &c.

(a) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

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- (b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or
- (c) Omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer;

shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any persons so employed or resident suffering from any infectious disease the medical officer or the sanitary inspector or any other officer who is duly authorised by the Corporation in that behalf may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in any of the premises and the Corporation shall compensate the owner of the ice-cream or similar commodity or materials so destroyed :

Provided that no compensation shall be payable in respect of any ice-cream or similar commodity or materials for the manufacture of the same manufactured or brought upon the said premises between the time when the owner has been notified by a registered medical practitioner of the existence of infectious disease thereon and the time when such premises are free from infection.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) (a) The medical officer and the sanitary inspector and any other officer who is duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity

for the purpose of inspecting such premises and the materials or commodities or articles of food therein and any cart barrow or stand in or on which the same are offered for sale as an officer of the Corporation would have under section 102 of the Public Health Act 1875 in the cases therein mentioned.

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(b) Any person refusing entry into or inspection of such premises as aforesaid or refusing inspection of the materials or commodities or articles of food therein or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding five pounds.

42.—(1) Any person who in the manufacture storage or preparation for sale of sausages pressed or pickled meat or other similar commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination shall be liable for every such offence to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

As to contamination of sausages and other foods.

(2) No person shall be convicted of an offence under this section unless before the commission of the offence with which he is charged he shall have had written notice that such an act or thing as the one complained of is an offence against this section.

43.—(1) No room shop or other part of a building in which any food is sold or prepared or exposed for sale or deposited for the purpose of sale or of preparation for sale or with a view to future sale shall be used as a sleeping place.

No place used for storage &c. of human food to be used as a sleeping place.

(2) If any person occupies or lets or knowingly suffers to be occupied any such room shop or other part of a building as a sleeping place in contravention of this section he shall be liable to a penalty not exceeding for a first offence twenty shillings and for every subsequent offence five pounds and in either case to a daily penalty not exceeding twenty shillings.

(3) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects

A.D. 1925 that there is any contravention of the provisions of this section and any person refusing such entry or inspection or obstructing any such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

Byelaws
as to food.

44.—(1) The Corporation may make byelaws for promoting sanitary and cleanly conditions in the manufacture preparation storage transport or exposure for sale of any article intended to be sold for the food of man.

(2) At least one month before applying to the Minister of Health for confirmation of any byelaws made under this section applicable to the storage or transport by a railway company of any article intended for the food of man the Corporation shall give notice to the company of their intention to make such application and such notice shall be accompanied by a copy of the proposed byelaws and the company shall be entitled to make representations to the Minister with regard thereto.

(3) Before confirming any byelaws made under this section as regards any business carried on in any factory or workshop to which the Factory and Workshop Acts 1901 to 1920 apply the Minister of Health shall consult the Secretary of State.

Byelaws as
to inspection
of meat.

45.—(1) The Corporation may make and enforce byelaws for preventing meat (other than foreign meat or meat which has been inspected and passed as fit for the food of man by a medical officer of health or a duly qualified inspector being an official of or authorised to act on behalf of the sanitary authority of the district in which the animal has been slaughtered) brought into the borough from being used for the food of man or being offered for sale or sold or deposited for sale or for the preparation for sale and intended for the food of man until after inspection by an officer of the Corporation.

(2) Provided that any byelaws made by the Corporation under this section shall provide—

(a) That any person bringing any meat (other than foreign meat or meat which has been inspected and passed as fit for the food of man by a medical officer of health or a duly qualified inspector being an official of or authorised to

act on behalf of the sanitary authority of the district in which the animal has been slaughtered) into the borough for purposes of sale shall give to the medical officer or sanitary inspector reasonable notice thereof in writing and of the day and hour and place in the borough at which the meat can be inspected as aforesaid; and

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- (b) That if within such reasonable period after the notified hour as may with due regard to the requirements of the trade be prescribed by the byelaw an officer of the Corporation shall not have attended at the place so notified for the purpose of inspection the restriction in subsection (1) of this section referred to shall not apply to the meat in respect of which the notice was given.

(3) Nothing contained in this section or in any byelaw to be made thereunder shall apply to the London and North Eastern Railway Company.

46.—(1) Subject to the provisions of this Act any officer duly authorised by the Corporation in that behalf shall at all reasonable times have power to enter the premises of any vendor of or merchant or dealer in any commodity intended for the food of man or any premises where any such commodity is for the purposes of sale deposited or stored or is in preparation for sale for the purpose of inspecting such premises and the materials or commodities or articles of food therein.

Power to
enter and
inspect
premises
where food
is deposited
for sale.

(2) On any such inspection the officer of the Corporation shall have power to take samples of any such materials commodities or articles of food found therein making reasonable payment therefor if required and if he intends to submit any sample to analysis he shall forthwith notify to the vendor merchant or dealer or the agent of such person his intention to have the same analysed by the public analyst and shall divide the sample into three parts to be then and there separated and each part to be marked and sealed or fastened up in such a manner as its nature will permit and shall if required to do so deliver one of the parts to such vendor merchant dealer or agent. The officer shall afterwards retain one of the said parts for future comparison and

A.D. 1925. submit the third part if he deems it right to have the sample analysed to the public analyst.

(3) Any person who without reasonable excuse refuses entry into or inspection of such premises as aforesaid or obstructs such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

(4) The expression " public analyst " in this section means the analyst appointed by the Corporation for the purposes of the Sale of Food and Drugs Acts 1875 to 1907.

Defining
establish-
ment of
a new
business for
purposes of
section 112
of Public
Health
Act 1875.

47.—(1) For the purpose of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 as extended by section 51 (Power to declare a business to be an offensive business) of the Public Health Acts Amendment Act 1907 and by this Act a trade business or manufacture shall be deemed to be established not only if it is established for the first time but also if without the consent in writing of the Corporation—

- (a) it is removed from one set of premises to any other premises; or
- (b) it is renewed on the same set of premises after having been discontinued for a period of six months or upwards; or
- (c) any premises on which it is for the time being carried on are enlarged;

but a trade business or manufacture shall not be deemed to be established for the first time on any premises by reason only that the ownership or tenancy of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

(2) Any consent of the Corporation to the establishment of any offensive trade or to the enlargement of any premises on which any offensive trade is carried on may be given so as to continue in force for such period only as the Corporation may prescribe by such consent and section 112 of the Public Health Act 1875 and this section shall be construed accordingly.

(3) If any person shall carry on such offensive trade beyond the period aforesaid he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1925. —

48.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of section 112 of the Public Health Act 1875 as extended by section 51 of the Public Health Acts Amendment Act 1907 and by this Act and in the opinion of the Corporation it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Corporation under the hand of the town clerk to cease to use such premises for the carrying on of such offensive trade. Discontin-
tinuance
of offensive
trade.

Such notice shall be deemed to be a requirement of the Corporation within the meaning of the section of this Act of which the marginal note is (As to appeals) and the owner or occupier (as the case may be) may appeal accordingly.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person such compensation for any loss sustained by him in consequence of the action of the Corporation as may be agreed between the Corporation and such person or as failing such agreement shall be determined by arbitration under the provisions of the Arbitration Act 1889 Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Corporation with reference to offensive trades.

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—
Regulation
dustbins.

49.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable covered galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Corporation.

(2) Every owner or occupier having provided any receptacle pursuant to this section shall maintain the same in good order and condition and shall remove or fill in to the satisfaction of the surveyor any ashpit for which the same has been substituted.

(3) Provided that the foregoing provisions of this section shall not apply to any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Corporation.

(5) The owner or occupier of any premises in connection with which a dustbin has been provided as required by this section shall if so required by the Corporation pay to the Corporation on each first day of April after such provision such sum not exceeding five shillings as the Corporation may from time to time by resolution determine for or towards the maintenance repair and renewal by them of such dustbin. Such payments shall be in satisfaction of the obligation of such owner or occupier in regard to the maintenance of such dustbin.

(6) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

PART V.

A.D. 1925.

TOWN MOOR PUBLIC BUILDINGS PARKS BATHS &c.

50. Notwithstanding anything contained in sub-article (1) of Article 4 of the Order of 1923 the provisions of that article shall extend and apply to any portion or portions of the promenade therein referred to, and of the adjoining banks and slopes and of the Town Moor which the Corporation may by resolution of the council passed in manner directed by that article from time to time determine and the Corporation may exercise the powers of that article accordingly.

Extension of
Article 4 of
Order of
1923.

51. Article 5 of the Order of 1923 shall be read and have effect as if in lieu of the words "a portion not exceeding three acres of the lands known as the Town Moor" there had been inserted therein the words "such portion of the lands known as the Town Moor as they may from time to time by resolution determine such resolution being passed at a meeting convened in manner prescribed by Article 4 of this Order."

Extension
of games
enclosure
on Town
Moor.

52. For the purposes of this Act and of section 82 of the Public Health Acts Amendment Act 1907 the expression "seashore" means and includes the sea-banks sea-walls and all the beach sands seashore and foreshore within the borough.

Meaning of
expression
"sea-
shore."

53. The Corporation may place or authorise any person or persons to place seats or chairs for the use of the public on the seashore and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make byelaws for regulating the use of the seats and chairs and for preventing injury or damage thereto.

Seats and
chairs for
public use
on sea-
shore.

54. Subject to the provisions of this Act and subject as regards any land leased to the Corporation to the terms of such lease the Corporation may—

Provision of
concert
halls pa-
vilions &c.

- (a) In any promenade park or pleasure ground and on the Town Moor and on the seashore and other lands in the borough of which for the time being they may be the owners or lessees erect construct and hold furnish equip maintain and carry on concert halls pavilions bandstands

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assembly rooms and other buildings with all necessary and suitable offices reading amusement and refreshment rooms kitchens cloak rooms conveniences and appurtenances. Provided that the Corporation shall not erect any such building on any part of the Town Moor without the consent of a majority of the burgesses of the borough voting at a meeting specially convened for the purpose having been previously obtained :

- (b) The Corporation may also for any of the purposes mentioned in paragraph (a) of this section and notwithstanding anything contained in section 40 (Corporation may discontinue public market and let the market premises) and section 41 (Corporation may lease market) of the Hartlepool Borough Extension Act 1883 appropriate for all time alter adapt extend or otherwise deal with the old market hall adjoining the borough buildings and any other buildings at the passing of this Act and for the time being belonging to the Corporation :
- (c) Upon any part of the seashore or lands as aforesaid construct and maintain bathing pools bathing bungalows shelters and conveniences and provide all necessary and convenient apparatus in connection therewith.

Power to
charge for
admission
&c.

55. The Corporation may subject to the provisions of this Act make such reasonable charges as they may think fit for admission to and for the use of any public building belonging to them or for the use of any buildings or of any enclosure in any public park or pleasure ground or lands for the time being vested in or under their control whether set apart under paragraph (b) of subsection (1) of section 76 of the Public Health Acts Amendment Act 1907 or otherwise and for the use of chairs and other conveniences provided by them therein.

Provision
of concerts
entertain-
ments &c.

56.—(1) The Corporation may subject to the provisions of this Act provide or arrange for the provision or carrying on of suitable concerts entertainments athletic meetings exhibitions and amusements and for the sale of refreshments in any public park or pleasure ground or lands for the time being vested in them or

under their control or in any building thereon and may make such charges as they may think fit for admission thereto. A.D. 1925.

(2) For any of the purposes of subsection (1) of this section or in connection with any such purpose the Corporation may—

- (a) Let any such public park or pleasure ground lands or building as is referred to in subsection (1) of this section or any part thereof for such periods and upon such terms and conditions as they may think fit. Provided that any letting other than for a period of less than one month under this section of any building for the purpose of an entertainment shall be by tender and the Corporation shall secure the best rent reasonably obtainable;
- (b) Enclose any area in any such public park or pleasure ground or lands as aforesaid;
- (c) Provide and sell or authorise any person or persons to provide and sell programmes;
- (d) Make byelaws for securing good and orderly conduct; and
- (e) Pay or contribute towards the cost of providing and maintaining advertisements in the borough or in the immediate neighbourhood thereof.

(3) All expenses incurred by the Corporation under the provisions of this section shall be paid out of the borough fund and borough rate and all moneys received by them thereunder shall be carried to the credit of the borough fund.

57. Nothing in the foregoing provisions of this Part of this Act shall empower the Corporation so to let at one and the same time more than fifty per centum of the total area of the public parks and pleasure grounds for the time being belonging to them or under their control. Limiting letting and user of parks &c.

58.—(1) Subject to the provisions of this Act the Corporation may upon land of which for the time being they may be the owners or lessees or on lands to be acquired by them by agreement for the purpose erect construct provide maintain furnish and equip sea-water Corporation may provide baths.

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fresh-water swimming and other baths and may lay down and provide such water intake pipes apparatus and fittings as may be incidental to or necessary for such purpose and may make such reasonable charges for admission to such baths as they may think fit.

(2) For the purpose of laying down and repairing pipes for supplying water to any baths belonging to them the Corporation may break up streets repairable by them and alter the position of any culverts pipes and wires under any such streets :

Provided that the Corporation shall not alter the position of or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of that Act.

(3) The Corporation may let on lease to any company or person for such term and on such conditions as they may think fit any baths constructed by them as aforesaid or the powers and rights with regard to the provision maintenance and carrying on of baths contained in this section.

Use of
swimming
baths for
exhibitions
and enter-
tainments.

59. The Corporation may close to the public and may reserve the exclusive use of any swimming bath belonging to them and may grant the use thereof either gratuitously or for payment for swimming contests practices aquatic exercises or for any other entertainment or exhibition or for meetings and may demand and take or authorise to be demanded and taken at the door or entrance of such swimming bath such sums for the exclusive use of such bath or for admission of persons thereto as they may think fit.

Baths and
Washhouses
Acts not to
apply.

60. The provisions of the Baths and Washhouses Acts 1846 to 1899 or any Act amending the same shall not apply to this Part of this Act or to the exercise by the Corporation of the powers conferred upon them thereby.

Prohibition
of touting
and hawk-
ing on
esplanade
&c.

61.—(1) No person shall on the Town Moor or the seashore or on any public walk garden or place of recreation within the borough importune any person by touting for a hotel lodging-house refreshment house shop pier boat garden theatre tramway hackney carriage or any place of amusement or without the consent in writing of

the Corporation hawk sell or offer for sale any article or commodity. Provided that in the case of the sale of newspapers and periodicals the said consent shall be given to such reasonable number of persons and upon such terms and conditions as the Corporation may think fit. A.D. 1925.

(2) Any person offending against the provisions of this section shall be liable for every such offence to a penalty not exceeding twenty shillings.

62.—(1) The Corporation may appoint officers for securing the observance of this Part of this Act and of the provisions of all other Acts relating to parks and pleasure grounds and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant. Power to appoint officers.

(2) Nothing in this section shall be deemed to render applicable to any such officer the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service.

63. Subject to the provisions of this Act and without prejudice to the provisions of the section of this Act of which the marginal note is "Crown rights" any person other than a grantee from the Crown who at any time carries away or removes any sand marl gravel shingle rock or other material from any portion of the seashore or beach (above or below high-water mark) or any sea defence work or embankment promenade footway or carriageway for the time being vested in or under the control of the Corporation upon which such sand gravel shingle rock or other material has been thrown by the sea within or fronting on the borough without having first obtained permission in writing of the Corporation so to do or who having obtained such permission carries away or removes any sand marl gravel shingle rock or other material from any part of the seashore beach sea defence work or embankment promenade footway or carriageway as aforesaid in any quantity or manner other than the quantity or manner permitted shall for every such offence be liable to a penalty not exceeding twenty pounds. Removal of sand &c. from seashore.

A.D. 1925.

Entertain-
ments
under-
taking.

64. The properties in this Part of this Act mentioned when used by the Corporation for or in connection with any concert entertainment athletic meeting exhibition or amusement and the rights powers and privileges held or exerciseable by the Corporation in connection with such user shall be called the entertainments undertaking.

Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

65. The Corporation shall not under the powers of this Act construct on over or under the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

PART VI.

LANDS.

Acquisition
of seashore
by agree-
ment.

66. The Corporation may by agreement but not otherwise purchase or take on lease the whole or any portion of the sea banks seawall seashore foreshore beach and sands situate within the borough.

Further
powers for
acquisition
of lands.

67.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes

of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof. Any moneys so borrowed shall be repaid within such period as may be prescribed by the Minister of Health. A.D. 1925.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the borough fund and borough rate:

Provided that nothing in this subsection shall authorise the Corporation—

- (a) to create or permit any nuisance on any lands so appropriated;
- (b) to appropriate such lands to any purposes other than purposes for which and subject to the conditions under which they are for the time being authorised to acquire and use lands.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

- (a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health; or
- (b) in such other manner as may be approved by the Minister of Health.

A.D. 1925.

Retention
and dis-
posal of
lands.

68.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Corporation may retain hold and use for such time and for such purpose as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any general or local Act for the time being in force in the borough (other than the Housing Acts 1890 to 1919) and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

(2) Provided that nothing in this section shall be taken to dispense with the consent of any Government department to any sale lease or other disposition of any lands of the Corporation in any case in which such consent would be required if this Act had not been passed nor shall the Corporation without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests.

(3) Any capital moneys received by the Corporation under this section on the resale or exchange of or by leasing any lands acquired under any Act (other than this Act) shall be applied in the same manner as capital moneys received under that Act are applicable or in such other manner as may be approved by the Minister of Health.

PART VII.

RATING PROVISIONS.

Commence-
ment and
interpre-
tation.

69.—(1) This Part of this Act shall come into operation on the first day of April nineteen hundred and twenty-six.

(2) In this Part of this Act unless the subject or context otherwise requires :— A.D. 1925.

“ The township ” means any of the townships and parishes within the borough;

“ The overseers ” means the overseers of the township;

“ The poor rate ” means the poor rates of the township;

“ The consolidated rate ” means the poor rate as by this Part of this Act authorised to be levied and collected.

70.—(1) (a) Notwithstanding anything to the contrary contained in any Act or Order from and after the commencement of this Part of this Act the council shall be the overseers and all powers duties and liabilities exercisable by or attaching to overseers shall be exercisable by and extend and apply to the council acting as overseers : Council to
be over-
seers.

Provided that—

- (i) Any person designated by the Corporation as hereinafter mentioned to perform duties in relation to the preparation of the jurors' book and the register of electors shall have the powers and duties and be subject to the liabilities of overseers under the enactments relating to these subjects :
- (ii) In the application to the township of section 54 of the Poor Law Amendment Act 1834 the said section shall be read and construed as if for the references therein to any overseer there were substituted references to any guardian representing any ward of the township;
- (iii) In the application to the township of sections 13 to 16 and section 20 of the Lunacy Act 1890 and section 2 of the Lunacy Act 1891 the said sections shall be read and construed as if references therein to an overseer had been omitted therefrom :
- (iv) The town clerk shall have the powers and duties and be subject to the liabilities of an overseer or overseers with respect to the matters specified in the First Schedule to this

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Act and any other powers and duties of an overseer or overseers with respect to matters similar in character to the matters specified in the said First Schedule which may be transferred to the town clerk by order of the Minister of Health who is hereby empowered to make any such order accordingly.

(b) The overseers of the township shall go out of office at the commencement of this Part of this Act.

(c) Separate accounts shall be kept of the transactions of the council acting as overseers and the enactments relating to the audit of the accounts of overseers shall apply to such separate accounts.

(2) (a) After the thirty-first day of March nineteen hundred and twenty-six every precept issued by the guardians of the Hartlepool Union for the purpose of obtaining money which is ultimately to be raised by the council acting as overseers out of the consolidated rate to be raised within the borough under the provisions of this Act shall be sent to the council at their office addressed to the council or the town clerk.

(b) Any document required to be signed by the overseers may be signed by the town clerk.

(3) References in any Act to the overseers shall be construed as references to the council and the legal interest in all property vested in the overseers (other than property connected with the affairs of the church or held for an ecclesiastical charity within the meaning of the Local Government Act 1894) shall vest in the council.

(4) Where the overseers as such are either alone or jointly with any other persons trustees of any parochial charity such number of members of the council or other persons not exceeding the number of the overseer trustees as the council may appoint shall be trustees in their place. The term of office of a trustee so appointed shall be four years.

Transfer to
Corpora-
tion of
powers
of vestry.

71. On the commencement of this Part of this Act all and every right custom privilege or power other than in matters ecclesiastical and in relation to ecclesiastical charities within the meaning of the Local Government Act 1894 vested in or exerciseable by the parishioners

ratepayers or inhabitants in vestry assembled of the township shall cease to be so vested or exerciseable and every such right custom privilege or power shall for and within the township be vested in and exerciseable by the Corporation.

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72.—(1) The Council may appoint and remove such officers as they deem necessary to assist in the discharge of the duties of overseers and may fix the remuneration to be paid to such officers.

Appoint-
ment of
assistant
overseers
and other
officers.

(2) The registration officer may before the preparation of the autumn register in any year require the Corporation to designate one or more of the assistant overseers or other officers appointed under this section to perform the duties of overseers in relation to the preparation of the jurors' book and register of electors in that year and the Corporation shall forthwith comply with any such requirement of the registration officer. The remuneration of or expenses incurred by any such officer in respect of the performance of such duties shall continue to be payable in accordance with the provisions of the enactments relating to these subjects.

(3) (a) Any assistant overseer appointed by the council and all officers appointed or to be appointed by the council to assist in the discharge of the duties of overseers shall give such security to the Corporation for the due performance of their duties as may be required by the Corporation and the district auditor appointed by the Minister of Health shall report thereon annually to the Corporation and such securities shall be deposited with the Corporation and not with the board of guardians.

(b) Assistant overseers appointed by the council shall not be required to give security to the guardians of the Hartlepool Union under section 61 of the Poor Law Amendment Act 1844.

(4) Any person holding at the commencement of this Part of this Act the office of assistant overseer for the township shall (subject to the provisions of this section) after the commencement of this Part of this Act become an officer of the Corporation acting by the council as overseers.

A.D. 1925.

(5) The Corporation may abolish the office or situation of any person holding the office of assistant overseer which they deem unnecessary and any such person required to perform duties such as are not analogous or which are an unreasonable addition to those which he was required to perform may relinquish his office or situation.

(6) Every person whose office or situation is so abolished or who so relinquishes his office or situation or whose services are dispensed with on the ground that they are not required or for any reason not being on account of any misconduct or incapacity or whose salary wages or remuneration are reduced on the ground that his duties have been diminished or who otherwise suffers any direct pecuniary loss by reason of the provisions of this section shall be entitled to be paid compensation for such pecuniary loss to be determined and paid by the Corporation subject to appeal to the Minister of Health in accordance with the provisions contained in section 120 of the Local Government Act 1888 relating to compensation to existing officers and those provisions shall apply accordingly as if they were herein re-enacted with the necessary modifications :

Provided that the expression in subsection (1) of section 120 of the Local Government Act 1888 "the Acts and rules relating to Her Majesty's Civil Service" shall mean the Acts and rules relating to His Majesty's Civil Service which were in operation at the date of the passing of the Local Government Act 1888 and that in the said section the Minister of Health shall be substituted for the Treasury :

Provided also that any person who devotes his whole time to two or more offices held under the Corporation and who becomes entitled to compensation in pursuance of this section shall for the purposes of this section and in respect of the offices or each of the offices (as the case may be) held by him be deemed to be a whole-time officer employed at the net salary or remuneration (after deducting any expenses or payments for assistance or otherwise) received by him in respect of that office and references in section 120 of the Local Government Act 1888 to "the passing of this Act" shall as

respects a relinquishment of office be construed as refer- A.D. 1925.
 ences to the day on which the relinquishment takes effect. —

73.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund and general district rate or either of them shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the borough or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate.

Expenses to
 be paid out
 of borough
 fund and
 rate.

(2) The district fund shall be closed and any balance which at the commencement of this Part of this Act is standing to the credit or to the debit of the district fund or of the general district rate respectively shall from and after that date be transferred to the credit or the debit (as the case may be) of the borough fund and any moneys owing to the Corporation in respect of or in connection with the district fund or the general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund.

(3) The Corporation may make and levy any borough rate prospectively in order to raise money to pay charges and expenses to be incurred thereafter or retrospectively in order to raise money to pay charges and expenses already incurred.

74. The contribution of the township to the borough rate shall be paid by the overseers out of the poor rate to be made for the township and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall apply to such contributions.

Contribu-
 tion to
 borough
 rate to be
 paid out of
 poor rate.

A.D. 1925.

Poor rate to
be called
consoli-
dated rate.

75. The poor rate (inclusive of the contributions to the borough fund levied in pursuance of the provisions of this Act) shall be called "the consolidated rate" but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate.

Form of
rate &c. to
be pre-
scribed by
Minister of
Health.

76. The consolidated rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the consolidated rate shall be in such form as the Minister of Health may from time to time prescribe.

Differential
consoli-
dated rate
in certain
cases.

77. The provisions contained in this section shall have effect in the township with respect to the consolidated rates to be made and levied by the overseers (that is to say):—

(1) The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only as a canal or towing-path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the consolidated rate in respect of such hereditaments on the full rateable value thereof but (subject as next hereinafter provided) shall be liable to pay in each year only seventy-six per centum in respect of the townships of Hartlepool and Throston and seventy-four per centum in respect of the township of Middleton of the rate in the pound payable in respect of hereditaments not within the provisions of this section:

(2) Provided that—

(a) During the continuance of the Agricultural Rates Acts 1896 and 1923 the occupier of any agricultural land as defined in the Agricultural Rates Act 1896 shall be liable to pay in each year in respect of such land only twenty-five per centum of the rate in the

pound payable in respect of hereditaments not within the provisions of this section; A.D. 1925.

- (b) If the Agricultural Rates Act 1923 shall expire before the expiration of the Agricultural Rates Act 1896 there shall during the continuance of the latter Act be substituted for “twenty-five per centum” in paragraph (a) of this subsection forty-three per centum in respect of the townships of Hartlepool and Throston and forty-two per centum in respect of the township of Middleton;
- (c) During the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall have effect within the township as if the following provision were substituted for section 1 thereof (that is to say):—

“The owner of tithe rentcharge attached to a benefice shall be liable to pay only forty-three seventy-sixths in respect of the townships of Hartlepool and Throston and twenty-one thirty-sevenths in respect of the township of Middleton of the amount payable under subsection (1) of the section of the Hartlepool Corporation Act 1925 of which the marginal note is ‘Differential consolidated rate in certain cases’ in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining thirty-three seventy-sixths and sixteen thirty-sevenths respectively thereof shall on demand being made by the collector of the rate on the surveyor of taxes for the borough or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of the estate duty grant.”

(3) Nothing in this section shall in any way affect—

- (a) The share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly pro-

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vided in this Act the operation of that Act;
or

- (b) The operation of the Agricultural Rates Act 1923 or the power of the Minister of Health to estimate as respects each half year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923; or
- (c) The operation of the Ecclesiastical Tithe Rentcharges (Rates) Acts 1920 and 1922; or
- (d) The amount of the contribution for any purposes to be made by the township out of the consolidated rate.

(4) Section 39 (As to rating of railways docks &c.) of the Hartlepool Headland Protection and Improvement Act 1885 shall cease to apply to the London and North Eastern Railway Company.

Appeals.

78.—(1) If any occupier referred to in subsection (1) of the section of this Act of which the marginal note is “Differential consolidated rate in certain cases” claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions for the county palatine of Durham holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days’ notice in writing of such appeal and of the grounds thereof be given by the appellant to the Corporation as the overseers.

(2) On appeals under this section the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

79. If the Corporation so require they acting by the council as overseers shall in pursuance of the provisions of section 15 (Overseers may make poor rate payable by instalments) of the Poor Rate Assessment and Collection Act 1869 declare that any consolidated rate made by them for a period exceeding three months shall be paid by instalments at such times as shall have been previously specified by the Corporation.

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—
Payment of
consoli-
dated rate
by instal-
ments.

80. For the purposes of section 133 (Deficiency to be made good by promoters) of the Lands Clauses Consolidation Act 1845 the poor's rate shall be deemed to be thirty-five per centum of the amount in the pound of the consolidated rate.

Application of
section 133
of Lands
Clauses Con-
solidation
Act 1845.

81. No warrant of commitment in respect of non-payment of the consolidated rate shall be issued against any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate.

As to
recovery of
consolidated
rate.

82. Section 267 (Service of notices) of the Public Health Act 1875 shall apply to any demand for the consolidated rate to be served by the overseers.

Service of
demands.

83.—(1) The owner instead of the occupier may from time to time at the option of the Corporation be rated to the consolidated rate—

Rating of
owners
instead of
occupiers.

(a) where the rateable value of the property does not exceed ten pounds; or

(b) where the premises are let in separate apartments; or

(c) where the rents are collected weekly :

Provided that—

(i) where the rateable value of the property does not exceed ten pounds the Corporation may allow to the owner so rated a deduction of not exceeding fifteen per centum as the Corporation may from time to time determine from the amount of the rate when paid by him if

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—

he shall pay the same within such period as the Corporation may determine not being less than three months after the rate has been demanded :

- (ii) where the owner of any premises referred to in this subsection is willing to enter into an agreement to pay the rates whether the premises are occupied or not the Corporation may make a further allowance not exceeding fifteen per centum from the amount of the rate when paid by him within such period as the Corporation may determine not being less than three months after the rate has been demanded :

(2) When the Corporation exercise their powers under this section they acting by the council as overseers shall rate the owner and the owner shall pay the rate accordingly and during the currency of any such notice the provisions of this section shall apply within the borough in substitution for the provisions with regard to the rating of owners instead of occupiers which are contained in sections 3 4 and 5 of the Poor Rate Assessment and Collection Act 1869.

Overseers
may require
returns.

84.—(1) The overseers of the township may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in the township (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the form set forth in the Second Schedule to this Act and containing the particulars therein mentioned or referred to :

Provided that (except for purposes connected with the preparation of and preliminary to a general re-valuation for rating) the powers conferred by this section shall only be exercised—

- (a) upon any change in the occupation or ownership of any hereditament; or
(b) upon any change in the nature or use of any hereditament whether by way of addition to or

adaptation of premises or otherwise such as may affect the value of the hereditament; or

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—

- (c) in the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after receipt of such notice as aforesaid shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers of the township shall whenever required by the assessment committee of the Hartlepool Poor Law Union produce from time to time to such committee the returns or any of them obtained by the overseers under the provisions of this section.

(4) Nothing in this section shall require a railway company to include in any return which they may be required to send to the overseers particulars with respect to their running lines sidings or stations or any hereditaments therein.

85. In addition and without prejudice to any other powers which may be exercised by them the overseers of the township may amend the consolidated rate of the township by inserting therein the name of any person claiming or entitled to have his name inserted or by inserting the name of any person who ought to have been rated or by striking out the name of any person who ought not to have been assessed or by raising or reducing the sum at which any person has been assessed if it appears to the overseers that he has been under-rated or over-rated or by making any other alteration which would make the rate conformable to the provisions of this Act and no such amendment shall be held to avoid the rate :

Amendment
of consoli-
dated rate.

A.D. 1925.

Provided that—

- (1) Any person who may feel himself aggrieved by any such amendment shall have the same right of appeal therefrom as he would have had if the matter of the amendment had appeared on the rate originally made and with respect to him an amended rate shall be considered to have been made at the time when he first received notice of the amendment :
- (2) An amended rate shall not be payable by any person the amount of whose rate is increased by the amendment or whose name is thereby newly inserted until seven days after such notice has been given to him.

Borough
rate may
include
working
balance.

86. The purposes to which the borough fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the borough fund and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance.

PART VIII.

FINANCIAL.

Power to
borrow.

87.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the respective revenue fund and rate mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of this Act and of any enactment incorporated therewith or applied

thereby shall respectively be "the prescribed period") A.D. 1925.
 mentioned in the fourth column thereof (namely):—

(1)	(2)	(3)	(4)
Purpose.	Amount.	Charge.	Period for repayment.
(a) For the provision of omnibuses.	£ 8,000	The revenue of the omnibus undertaking of the Corporation and the borough fund and borough rate.	Eight years from the date or dates of borrowing.
(b) For the purchase of lands and the erection of buildings for the purpose of the omnibuses of the Corporation.	2,000	The revenue of the omnibus undertaking of the Corporation and the borough fund and borough rate.	Thirty-five years from the date or dates of borrowing.
(c) For paying the costs charges and expenses of this Act.	The sum requisite.	The borough fund and borough rate.	Five years from the passing of this Act.

(2)—(a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes (including working capital) of Part II. (Omnibuses) of this Act and with the consent of the Minister of Health such money as may be necessary for any of the other purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister with whose consent it is borrowed and that period shall be "the prescribed period" for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister with whose consent the money is borrowed.

A.D. 1925.

(3) The provisions of this section prescribing the revenue fund or rate which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by the section of this Act of which the marginal note is "Power to use one form of mortgage."

Certain
provisions
of Public
Health
Acts not to
apply.

88. In calculating the amount which the Corporation may borrow under the provisions of the Public Health Acts any sums which the Corporation may borrow under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for those purposes shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

Application
of financial
provisions
of Order of
1923.

89. The following provisions of the Order of 1923 shall with any necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act namely:—

Art. 8 Local Loans Act and certain provisions of Public Health Act made applicable:

Art. 9 Period for repayment of borrowed moneys:

Art. 10 Mode of repayment Formation maintenance and application of sinking fund:

Art. 11 Increase reduction or discontinuance of payments to sinking fund Surplus of sinking fund:

Art. 12 Power to reborrow:

Art. 13 Application of borrowed moneys:

Art. 14 Receiver:

Provided that Article 8 shall be read and have effect as if subsection (2) thereof had been expressed to be made subject to the provisions of the section of this Act of which the marginal note is "Power to use one form of mortgage."

Revenue
and ex-
penses of
trading
under-
takings.

90. As from the thirty-first day of March one thousand nine hundred and twenty-six all money received by the Corporation on account of the revenue of any of their trading undertakings (including the interest on any reserve fund authorised in connection therewith when such fund amounts to the prescribed maximum) shall be carried to and shall form part of the borough fund and

all payments and expenses made and incurred in respect of each of those undertakings (including any deficiency in any year of the income of that undertaking not answered out of any reserve fund) shall be paid out of the borough fund. A.D. 1925.

91.—(1) As from the thirty-first day of March one thousand nine hundred and twenty-six the Corporation shall keep their accounts so as to distinguish capital from revenue and as regards the revenue accounts to show under a separate heading or division in respect of each of their trading undertakings on the one side all receipts (including the interest on any reserve fund authorised in connection therewith when such fund amounts to the prescribed maximum) and on the other side all payments and expenses in respect of that undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

Separate accounts in respect of trading undertakings.

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) The amount (if any) paid to a reserve fund which the Corporation are hereby authorised to maintain (if the Corporation think fit) in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one-tenth of the aggregate capital expended for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from or to meet any extraordinary claim or

A.D. 1925.
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demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof or for any extension of the said works or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(2) Notwithstanding anything contained in this Act the Corporation shall show in their accounts relating to any undertaking or purpose all items (including payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) As from the first day of April one thousand nine hundred and twenty-six section 47 (Revenue and deficiency in respect of ferry undertaking) of the Hartlepool Corporation Act 1919 is hereby repealed.

Power to
use one
form of
mortgage.

92.—(1) Where the Corporation have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Third Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the dates of the respective mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

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(5) There shall be kept at the office of the town clerk a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed.

Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a fine not exceeding five pounds.

(6) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Third Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(7) There shall be kept at the office of the town clerk a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(8) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(9) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required

A.D. 1925. — to be made he shall be liable to a fine not exceeding twenty pounds.

Evidence
of transfer
or trans-
mission of
securities.

93. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

Interest on
mortgages
held jointly.

94. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Receipt in
case of
persons not
sui juris.

95. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

Corporation
not to
regard
trusts &c.

96. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages or books of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register or books and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable

or accountable for any loss misapplication or non-application of any such money. A.D. 1925.

97. A person lending money to the Corporation under any statutory borrowing power shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or of the conditions attaching to the statutory borrowing power under which the money is borrowed or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof. Protection
of lender
from
inquiry.

98. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of any fund accumulated for the redemption of debt or as a reserve renewals depreciation contingent insurance superannuation or other similar fund (in this section respectively referred to as "the lending fund") and not for the time being required for the purpose for which the moneys have been accumulated subject to the following conditions:— Use of
moneys
forming
part of
sinking and
other funds.

- (1) The moneys so used shall be repaid by the borrowing fund to the lending fund as and when required for meeting the obligations for which the said fund was established and if and so far as they are not so required within the periods by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be payable:

Provided that the Corporation may if they so determine repay to the lending fund the money so used at any time within the period aforesaid:

- (2) Interest shall be paid by the borrowing fund to the lending fund on any moneys so used and for the time being not repaid to the fund and such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the revenues of the Corporation:

A.D. 1925.

- (3) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to the re-borrowing of sums raised under the statutory borrowing power shall apply thereto.

Consoli-
dated loans
fund.

99.—(1) Notwithstanding anything contained in any other Act the Corporation may if they think fit as from the thirty-first day of March one thousand nine hundred and twenty-six or as from any succeeding thirty-first day of March establish a fund to be called “ the consolidated loans fund ” to which shall be paid as and when they are received :—

- (a) All moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of statutory borrowing powers;
- (b) All moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) The appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers; and
- (d) A sum or sums equal to the aggregate amount of all dividends or interest payable in each year on the stock mortgages or other securities issued in exercise of the statutory borrowing powers of the Corporation and remaining outstanding :

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except of such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the thirty-first day of March as from which date the consolidated loans fund shall be established.

(2) The moneys of the consolidated loans fund shall subject as hereinafter provided be used or applied by the Corporation :—

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- (a) In the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; or
- (b) In the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation; or
- (c) In the payment of dividends and interest on the stock mortgages or other securities issued in the exercise of the statutory borrowing powers of the Corporation and remaining outstanding :

And any moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

100. When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act

Investment
of and pay-
ments into
sinking
fund.

A.D. 1925. the Corporation are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations thereof (if any) required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation (that is to say):—

(1) The Corporation may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities:

(2) The appointed yearly sums and the accumulations (if any) of the said yearly sums shall be paid and provided out of the borough fund and borough rate and any interest dividends and annual proceeds arising from the investment of the said yearly sums and the appropriations thereof (including such yearly sums and accumulations thereof as may have been provided prior to the passing of this Act) shall be paid into the borough fund.

Return to
Minister of
Health with
respect to
repayment
of debt.

101.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer and shall be transmitted within one month after the making of the request and in the event of the town clerk failing to make such return or the treasurer failing to make such declaration the officer so in default shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be

paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court. A.D. 1925.

(4) The following enactments are hereby repealed (that is to say):—

Section 70 (Annual return to Local Government Board with respect to sinking fund in respect of moneys borrowed on mortgage) of the Hartlepool Borough Extension Act 1883.

Section 29 (Annual return to Local Government Board) of the Hartlepool Headland Protection and Improvement Act 1885.

Section 45 (Return to Local Government Board as to repayment of debt) of the Hartlepool Corporation Act 1919.

Article 15 (Return as to provision for repayment of debt) of the Order of 1923.

102. All expenses incurred by the Corporation in carrying into execution the provisions of this Act with respect to which no other provision is made may be defrayed out of the borough fund and borough rate. Expenses of execution of Act.

103. In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as may be reasonably practicable apportion between those accounts or carry to either of them any receipts Apportionment of items.

A.D. 1925. — credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

Appointed
auditors.

104.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts. Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “the appointed auditor.”

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the borough.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the borough auditors and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

Accounts
to be
furnished to
Minister of
Transport.

105. The Corporation shall every year within three months after the closing of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their omnibus undertaking.

PART IX.

A.D. 1925.

MISCELLANEOUS.

106. The powers conferred by section 21 of the Town Police Clauses Act 1847 shall extend to enable the Corporation within the borough on days appointed for carnivals or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours.

Power to make regulations as to traffic on carnival &c. days.

107. The Corporation may pay out of the borough fund as expenses incurred by them under the Municipal Corporations Act 1882—

Subscriptions to local government associations and other expenses.

(a) Reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings :

(b) The reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

108. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the provisions contained in Parts III. IV. and V. of this Act provided that no byelaws affecting the foreshore

General provisions as to byelaws.

A.D. 1925. below high-water mark shall come into operation until the consent of the Board of Trade has been obtained.

As to
breach of
conditions
of consent
of Cor-
poration.

109. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Evidence of
appoint-
ments
authority
&c.

110. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the Corporation under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution or order of the Corporation or any resolution order or report of any committee of the Corporation a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Informa-
tions by
whom to
be laid.

111. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the borough.

Damages
and charges
to be
settled by
court.

112. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

113. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court otherwise having jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

A.D. 1925.

Recovery of
demands.

114. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties
&c.

115. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several
sums in one
summons.

116. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Compensa-
tion how to
be deter-
mined.

117. All consents given by the Corporation under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the borough shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Consents of
Corpora-
tion to be
in writing.

118. Whenever the Corporation or the surveyor under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to do such work act or thing the Corporation shall not as between themselves and such owner occupier or other person in

In execut-
ing
works for
owner Cor-
poration
liable for
negligence
only.

A.D. 1925.

—

the absence of any negligence on the part of the Corporation or the surveyor or of any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

Penalty on
occupier
refusing
execution
of Act.

119. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under Part III. (Streets buildings and drains) or Part IV. (Infectious disease and sanitary provisions) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Apportion
ment of
expenses in
case of
joint
owners.

120. Where under the provisions of this Act or any other local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Authentica-
tion and
service of
notices &c.

121.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the

town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. A.D. 1925.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

122. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any enactment for the time being in force within the borough. Application of section 265 of Public Health Act 1875.

123. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part III. (Streets buildings and drains) or Part IV. (Infectious disease and sanitary provisions) of this Act or by any order made by a court of summary jurisdiction under any of the said provisions may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal. As to appeals.

124.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister of Health shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875. Inquiries by Minister of Health.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including the

A.D. 1925. expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

Powers of
Act cumulative.

125. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Saving for
indictments
&c.

126. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Judges &c.
not disqualified.

127. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Crown
rights.

128. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

129. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of moneys to be borrowed under this Act for that purpose.

A.D. 1925.

Costs of
Act.

A.D. 1925.

The SCHEDULES referred to in the
foregoing Act.

FIRST SCHEDULE.

DUTIES OF OVERSEERS TRANSFERRED TO TOWN CLERK.

Subject Matter.	Act &c. imposing the Duty..
Liquor licences - - -	Licensing (Consolidation) Act 1910 sections 15 and 25.
Pawnbrokers' certificates -	Pawnbrokers Act 1872 section 42.
Notices under Education Act	Education Act 1921 section 161.
Army Reserve - - -	Reserve Forces Act 1882 section 24.
Territorial Army - - -	Territorial and Reserve Forces Act 1907 section 19.
Air Force Reserve - - -	{ The two last-mentioned enact- ments as applied by or under any other Act.
Auxiliary Air Force - - -	

SECOND SCHEDULE.

**RETURN OF RENT OR ANNUAL VALUE AND OF OTHER
PARTICULARS TO BE RENDERED UNDER THE HARTLEPOOL
CORPORATION ACT 1925.**

1. Name of the street or road &c. in which the property is situate - Number of the house - - - (If not numbered state the name by which known.) Whether occupied with or without stables or other premises as part of the same property - - - The quantity of land (if any) and how used.	
2. Full Christian name and surname of occupier - - - -	

A.D. 1925.

3. Name and address of owner or immediate lessor - - - - - (If not known state the name and address of the agent or person to whom the rent is paid.)	
4. Whether the property is occupied— (a) Wholly as a private residence - - - - - or (b) Partly as a dwelling-house and partly for trade or business purposes - - - - - or (c) Solely for trade or business purposes with no person residing on the premises other than a caretaker - - - - - (Number of rooms set apart for the use of the caretaker (if any) and on which floor.) (d) Nature of the business (if any) - - - - -	(a) (b) (c) (d)
5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors - - - - -	
6. Amount of rent - - - - - or if ground rent only is paid state its amount - - - - -	£ per £ per
7. Whether the property is held under lease or agreement for a period of years - - - - - or by the year quarter month or week - - - - -	
8. (a) Date of commencement of term of lease or agreement - - - - - (b) Term of years for which granted (c) Whether granted for any consideration in money in addition to the rent or upon any condition as to laying out money in building rebuilding or improvements - - - - - (If none insert "None.")	(a) (b) (c) Amount paid for lease £

A.D. 1925.

9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair - - - - -	} Annual Value £
10. (a) Amount of land tax (if any) - (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)	(a) £ . Borne by the (b) £ . Borne by the
11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -	
12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property - - - - - (If each undertakes to bear part only of the cost of repairs state the particulars.)	

DECLARATION.

I declare that the foregoing particulars are in every respect fully and truly stated to the best of my judgment and belief.

THIRD SCHEDULE.

FORM OF MORTGAGE.

BOROUGH OF HARTLEPOOL.

By virtue of the Hartlepool Corporation Act 1925 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Hartlepool (hereinafter referred to as "the Corporation") in consideration of the sum of pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by (hereinafter referred to as "the

mortgagee ") do hereby grant and assign unto the mortgagee A.D. 1925.
 [his] executors administrators and assigns such proportion of the
 revenues of the Corporation (which expression includes the
 revenues of the Corporation from time to time arising from any
 land undertaking or other property for the time being of the
 Corporation and the rates or contributions leviable by or on the
 order or precept of the Corporation) as the principal sum doth
 or shall bear to the whole sum which is or shall be charged on
 the said revenues To hold unto the mortgagee [his] executors
 administrators and assigns from the day of the date of these
 presents until the principal sum shall be fully paid and satisfied
 with interest for the same (subject as hereinafter provided) at
 the rate of _____ per centum per annum from
 the _____ day of _____ one thousand nine
 hundred and _____ until payment of the principal
 sum such interest to be paid half-yearly on the
 day of _____ and the _____ day of
 _____ in each year And it is hereby agreed that the
 principal sum shall be repaid at the municipal offices in the
 said borough (subject as hereinafter provided) on the
 day of _____ one thousand nine hundred and
 or (if not repaid on that date) at any time thereafter on the
 expiration of three calendar months' notice in writing by the
 Corporation to the mortgagee or by the mortgagee to the
 Corporation [by _____]:

Provided always and it is hereby agreed and declared that
 the before-mentioned time for repayment may be extended to
 such subsequent day or days and upon any such extension the
 before-mentioned rate of interest may be altered to such other
 rate or rates of interest as shall from time to time be agreed
 upon between the Corporation and the mortgagee and mentioned
 in an endorsement to be made hereon under the hand of the
 town clerk of the borough for the time being and that upon
 any such endorsement being made whether relating to exten-
 sion of time only or to extension of time with alteration of
 rate of interest the provisions thereof shall be incorporated
 herewith and shall operate and take effect as though they had
 been originally inserted herein.

In witness whereof the Corporation have caused their cor-
 porate seal to be hereunto affixed this _____ day of
 one thousand nine hundred and _____

Town Clerk.

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named
 consenting the within-mentioned time for repayment of the
 within-mentioned principal sum of

[Ch. cxviii.]

Hartlepool
Corporation Act, 1925.

[15 & 16 GEO. 5.]

A.D. 1925. is hereby extended to the day of and the
— one thousand nine hundred and
interest to be paid thereon on and from the
day of one thousand nine hundred and
is hereby declared to be at the rate of
per centum per annum.

Dated this day of one
thousand nine hundred and

FORM OF TRANSFER OF MORTGAGE.

I [the within-named] [of
] in

consideration of the sum of
pounds paid to me by
of
(hereinafter referred to as "the transferee") do hereby transfer
to the transferee [his] executors administrators and assigns [the
within-written security] [the mortgage number
of the revenues of the mayor aldermen and burgesses of the
borough of Hartlepool bearing date the day of
] and all my right and interest under the same
subject to the several conditions on which I hold the same at
the time of the execution hereof and I the transferee for myself
my executors administrators and assigns do hereby agree to take
the said mortgage security subject to the same conditions.

Dated this day of one
thousand nine hundred and

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